

DPDP 2023

Digital Personal Data Protection Act, 2023

Digital Personal Data Protection Act (DPDP), 2023

User Query :

Someone created a fake Instagram account using my name, photographs and other profile details. The person is messaging my friends and relatives while pretending to be me and asking them for money because of a supposed emergency. Two of my friends have already transferred money to the account mentioned in those messages. What legal provisions may apply?

Job Id. :

qwen3-30b/Scenario 2/Digital Personal Data Protection Act (DPDP), 2023

Prepared by :

NyaySahayak

Date :

29 August 2026

NyaySahayak

AI-Powered Legal Intelligence Platform

INTERPRETATION & LEGAL ANALYSIS

AI-generated legal interpretation

- 1 The facts show misuse of the victim's identity by an individual scammer, but do not establish a Data Fiduciary/processor relationship or another clear DPDP processing basis against the scammer.

✓ STRENGTHS & RIGHTS

- 1 A restrained 'no direct provision on stated facts' answer avoids conflating identity fraud with Data Fiduciary compliance.

✗ RISKS & OBLIGATIONS

- 1 Different facts about Instagram/platform processing or disclosure could raise DPDP issues, but they are not stated here.

PROCEDURAL NOTES & COMPLIANCE STEPS

Actionable steps for compliance and grievance redressal

COMPLIANCE STEPS

1. Current-law caveat (29 Aug 2026): the key substantive private-sector DPDP duties relevant to these scenarios are scheduled to commence on 13 May 2027 under the 13 Nov 2025 commencement notification. Until then, treat these mappings as doctrinal/prospective rather than currently enforceable duties.

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